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UNITED STATES DISTRICT COURT
NORTHERN DISTRICT OF WEST VIRGINIA
CLARKSBURG DIVISION

WEST VIRGINIA RIVERS COALITION and
WEST VIRGINIA HIGHLANDS
CONSERVANCY,
Plaintiffs,

v.

AMSTED GRAPHITE MATERIALS LLC,
Defendant.

No. 1:26-cv-00046-TSK

MEMORANDUM OF LAW IN SUPPORT OF DEFENDANT'S MOTION TO DISMISS COMPLAINT

The Court should dismiss the Clean Water Act ("CWA") Complaint filed by Plaintiffs West Virginia Rivers Coalition and West Virginia Highlands Conservancy ("Plaintiffs") because their citizen suit violates numerous constitutional provisions. Congress's enactment of 33 U.S.C. § 1365—the statute under which Plaintiffs pursue this case—upsets the balance struck by the U.S. Constitution's Framers. In 1787, they vested the executive power in a President and established Executive Branch unity by giving the President the power to appoint, oversee, and remove subordinates. The Framers feared that a plural executive would lead to second-guessing of the President's decisions. Although the Framers chose this arrangement, Congress in 1972 shattered Executive Branch unity with CWA citizen suits, which allow private actors to exercise executive power. And that is what happened here: despite being notified by Plaintiffs of the alleged violations in December 2025, the President's subordinates did not bring an enforcement action in federal court. That should have been the end of the story. But because Congress undermined the President's prerogatives, Plaintiffs—who think they know better than the President, Department of Justice ("DOJ"), and U.S. Environmental Protection Agency ("EPA")—were allowed to bring

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the very claim the Executive declined to pursue. This is not an isolated incident, as this is the seventeenth CWA citizen suit Plaintiffs have filed since 2007, second-guessing the Government.

But Congress's allowance of private plaintiffs to vitiate the President's enforcement decisions is not the worst aspect of citizen suits. By allowing private individuals who are not part of the federal government to exercise executive power, such suits also threaten the liberty and accountability our Framers sought to ensure. The vesting of all executive power in an accountable government official was just as much a part of Article II's design as the vesting of that power in one individual. Under this structure, private, unaccountable plaintiffs may not seek public remedies, which is exactly what Plaintiffs attempt here by suing for civil penalties payable to the U.S. Treasury to the tune of over $68,000 per day, per violation.

Because Plaintiffs wield executive power, their lawsuit triggers the private nondelegation doctrine, which prevents private individuals from wielding government power and limits their role to giving advice, assistance, and recommendations to an agency with authority and surveillance over them. Plaintiffs cannot meet this test, and their citizen suit violates this doctrine. And because Congress has allowed Plaintiffs to wield executive power to bring a lawsuit that the Executive declined to pursue, Congress has interfered with the President's ability to employ prosecutorial discretion and thereby violated the Executive Vesting and Take Care Clauses. Finally, because Plaintiffs exercise significant governmental authority on a continuing basis, this lawsuit violates the Appointments Clause. For all of these reasons, the Court should dismiss the Complaint.

STATEMENT OF FACTS & PROCEDURAL HISTORY

Amsted Graphite Materials LLC ("Amsted" or "Defendant") "owns and operates a facility . . . in Anmoore, West Virginia" that "produces specialty carbon and graphite products." *See* Complaint ("Compl.") ¶¶ 7–8. The facility operates under "West Virginia/National Pollutant

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Amsted Graphite Materials LLC ("Amsted" or "Defendant") "owns and operates a facility . . . in Anmoore, West Virginia" that "produces specialty carbon and graphite products." See Complaint ("Compl.") ¶¶ 7–8. The facility operates under "West Virginia/National Pollutant Discharge Elimination System ('WV/NPDES') Permit WV0004707," which allows it to discharge, subject to discharge limitations, "industrial wastewater . . . and storm water runoff . . . into Anmoore Run and . . . into an unnamed tributary of Anmoore Run approximately 2 miles from its confluence with Elk

Discharge Elimination System ("WV/NPDES") Permit WV0004707, which allows it to discharge, subject to discharge limitations, "industrial wastewater . . . and storm water runoff . . . into Anmoore Run and . . . into an unnamed tributary of Anmoore Run approximately 2 miles from its confluence with Elk Creek, a tributary of the West Fork River, a tributary of the Monongahela River." *Id.* ¶¶ 2, 24. The facility also discharges groundwater into Anmoore Run. *Id.* ¶ 24.

Amsted became responsible for the WV/NPDES Permit on July 6, 2020, after acquiring an ownership in the facility in June 2020. *See* Consent Order, Findings of Fact ¶ 1, attached as **Exhibit A.**[1] The WV/NPDES Permit was renewed on April 28, 2021. *Id.*; *see also* Compl. ¶ 25; Consent Agreement and Final Order ("CAFO") ¶ 26, attached as **Exhibit B.**[2] On March 8, 2022, and after the required public comment period, the CAFO entered between Amsted and EPA was filed. Ex. B, p. 1. As part of the binding agreement, Amsted agreed to pay a civil penalty of $216,436. *Id.* ¶¶ 78–87.

"Section I.B. of [WV/NPDES Permit WV0004707] contains a compliance schedule that required Amsted to complete the construction of any necessary upgrades and achieve the final effluent limitations for several types of [alleged pollutants] by June 1, 2023." Compl. ¶ 26. The West Virginia Environmental Quality Board twice extended the compliance deadlines in July 2023

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[1] The Complaint cites to the Consent Order Amsted entered with the West Virginia Department of Environmental Protection ("WVDEP"). Compl. ¶ 28. The Consent Order was signed on January 24, 2024, and became effective on March 13, 2024, after the expiration of the required public comment period. It is specifically referenced to in the Complaint and integral to Plaintiffs' claims and can be considered by this Court. *See Goines v. Valley Cmty. Servs. Bd.*, 822 F.3d 159, 165–66 (4th Cir. 2016).

[2] The CAFO is a consent order between Amsted and EPA and is subject to judicial notice. *See, e.g.*, *S. River Watershed All., Inc. v. DeKalb Cnty.*, 484 F. Supp. 3d 1353, 1365 (N.D. Ga. 2020), *aff'd*, 69 F.4th 809 (11th Cir. 2023); *Wai Ola All. v. U.S. Dep't of the Navy*, 734 F. Supp. 3d 1034, 1044 (D. Haw. 2024); *Maroney v. Woodstream Corp.*, 695 F. Supp. 3d 448, 453–54 (S.D.N.Y. 2023); *Cmty. Ass'n for Restoration of the Env't, Inc. v. George & Margaret LLC*, 954 F. Supp. 2d 1151, 1159 (E.D. Wash. 2013).

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"Section I.B. of [WV/NPDES Permit WV0004707] contains a compliance schedule that required Amsted to complete the construction of any necessary upgrades and achieve the final effluent limitations for several types of [alleged pollutants] by June 1, 2023." Compl. ¶ 26. The West Virginia Environmental Quality Board twice extended the compliance deadlines in July 2023 and March 2024. *Id.* ¶ 27. "WVDEP issued interim limits in an administrative consent order, effective on January 24, 2024, that took the place of final average limits for some parameters . . . until April 30, 2024 . . . ." *Id.* ¶ 28. In signing the Consent Order, Amsted agreed to a civil penalty of $268,659 for past violations of the WV/NPDES Permit and to stipulated penalties of $2,000 per day for any failure to reach any agreed milestones. Ex. A, p. 7. Amsted unequivocally waived its rights to both appeal the Consent Order and to challenge WVDEP's jurisdiction. *Id.*, p. 8.[3]

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[3] On July 31, 2025, WVDEP issued a stipulated penalty assessment for $390,000 pursuant to the terms of the Consent Order. In resolution of the Consent Order and the CAFO, Amsted has been assessed and agreed to pay $875,091. These facts are not necessary for this Court's consideration of the arguments set forth in this Motion and are presented merely to provide proper context.

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On December 23, 2025, Plaintiffs sent a Notice of Intent to Sue Letter to Amsted, the EPA Administrator, and WVDEP threatening to sue and alleging Amsted was violating the CWA by violating its WV/NPDES Permit and the WVDEP 2024 interim limits. Compl. ¶ 4. Plaintiffs allege that some of their "members use, enjoy, and benefit from . . . [the] unnamed tributary to Anmoore Run and Anmoore Run, and indirectly into the downstream waters, including Elk Creek, the West Fork River and the Mono[n]gahela River. Their recreational interests include wading, fishing, swimming, and generally enjoying the waters of those streams." *Id.* ¶ 12. "Plaintiffs' members, including Christa Clasgens and Nathan Rees, recreate in areas downstream from the" facility. *Id.* ¶ 13. Clasgens and Rees have "professional guide services for clients fishing in those waters," and "the members enjoy their visits to the affected waters less" due to the alleged discharges. *Id.*

EPA did not initiate a CWA lawsuit against Defendant prior to April 23, 2026. *See id.* ¶ 5. Although "WVDEP issued interim limits in an administrative consent order, effective on January 24, 2024," it too did not initiate a CWA lawsuit against Defendant prior to April 23, 2026. *Id.* ¶¶ 5, 28. On that date, Plaintiffs filed their CWA Complaint under 33 U.S.C. § 1365(a), alleging Defendant violated its WV/NPDES Permit discharge limits and the WVDEP 2024 interim limits. *Id.* ¶¶ 34–39. Plaintiffs pray for declaratory and injunctive relief, request that this Court assess a $68,445 penalty "per day for each violation" against Defendant, and seek attorney's and expert witness fees. *Id.* ¶¶ 22–23 & Requests for Relief.

LEGAL STANDARD

A Rule 12(b)(6) motion to dismiss should be granted where the complaint lacks "factual allegation[s] sufficient to plausibly suggest" a claim's elements. *Ashcroft v. Iqbal*, 556 U.S. 662, 678–83 (2009). An argument attacking the constitutionality of a statute may be made through a motion to dismiss. *See United States v. Morrison*, 529 U.S. 598, 604 (2000).

LEGAL ARGUMENT – 33 U.S.C. § 1365 VIOLATES THE SEPARATION OF POWERS

I. Plaintiffs Are Exercising the Executive Power

Through § 1365, Congress has unconstitutionally vested executive power in private citizens by allowing them to seek civil penalties, payable to the U.S. Treasury, for alleged violations of the

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and March 2024. *Id.* ¶ 27. "WVDEP issued interim limits in an administrative consent order, effective on January 24, 2024, that took the place of final average limits for some parameters . . . until April 30, 2024 . . . ." *Id.* ¶ 28. In signing the Consent Order, Amsted agreed to a civil penalty of $268,655 for past violations of the WV/NPDES Permit and to stipulated penalties of $2,000 per day for any failure to reach any agreed milestones. Ex. A, p. 7. Amsted unequivocally waived its rights to both appeal the Consent Order and to challenge WVDEP's jurisdiction. *Id.*, p. 8.[3]

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[3] On July 31, 2025, WVDEP issued a stipulated penalty assessment for $390,000 pursuant to the terms of the Consent Order. In total, between the Consent Order and the CAFO, Amsted has been assessed and agreed to pay $875,091. These facts are not necessary for this Court's consideration of the arguments set forth in this Motion and are presented merely to provide proper context.

The Framers vested "the 'executive Power'—all of it— . . . 'in a President,'" and the pursuit of "daunting monetary penalties against private parties on behalf of the United States in federal court [is] a quintessentially executive power." *Seila Law LLC v. CFPB*, 591 U.S. 197, 203, 219 (2020) (citation omitted); see also *Trump v. Slaughter*, 146 S. Ct. 2283, 2305 & n.4 (2026); *Friends of the Earth, Inc. v. Laidlaw Env't Servs. (TOC), Inc.*, 528 U.S. 167, 197 (2000) (Kennedy, J., concurring). Because Plaintiffs seek civil penalties payable to the U.S. Treasury of over $68,000 per day, per violation, they exercise executive power. See Compl. ¶ 23; see also Baron de Montesquieu, *The Spirit of the Laws* Pt. 2, Bk. 11, Ch. 6, p. 157 (Anne M. Cohler, Basia C. Miller & Harold S. Stone eds., 1989) (1748) ("the executive power" includes the power by which the magistrate "punishes"), attached as Exhibit C; John Locke, *Second Treatise on Government* §§ 7, 13, pp. 9, 12 (East India Publishing Co. ed. 2023) (1689) ("the executive power" includes the "right to punish the transgressors"), attached as Exhibit E.

Further, Plaintiffs exercise executive power by "conducting civil litigation in the courts of the United States for vindicating public rights[.]" *Buckley v. Valeo*, 424 U.S. 1, 140 (1976); see also *Slaughter*, 146 S. Ct. 2305 ("[T]he 'discretionary power to seek judicial relief' lies at the very core of executive authority." (quoting *id.* at 138)). There is a "longstanding distinction between injured parties seeking reparation for private harms and suits by sovereigns that 'seek to redress a wrong to the public as a whole, not just a wrong to the individual.'" *United States ex rel. Zafirov v. Fla. Med. Assocs., LLC*, 751 F. Supp. 3d 1293, 1313 (M.D. Fla. 2024) (quoting *Trump v. United States*, 603 U.S. 593, 614 (2024)). This distinction is rooted in "the familiar classification of Blackstone: 'Wrongs are divisible into two sorts or species: private wrongs and public wrongs,'" *Huntington v. Attrill*, 146 U.S. 657, 668–69 (1892) (quoting 3 William Blackstone, *Commentaries on the Laws of England* *2).

II. Plaintiffs' Exercise of Executive Power Violates the Private Nondelegation Doctrine

Congress's vesting of executive power in private plaintiffs, and Plaintiffs' attempt to wield it here, run afoul of the private nondelegation doctrine. *Pittston Co. v. United States*, 368 F.3d 385, 394 (4th Cir. 2004) ("[A] nondelegation principle serves . . . to retain power in the governmental Departments so that delegation does not frustrate the constitutional design."). This doctrine teaches the Constitution's separation of powers for[illegible] a law that "allows non-

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"[P]ublic rights"[5] are those "that involve duties owed 'to the whole community, considered as a community, in its social aggregate capacity.'" *Spokeo, Inc. v. Robins*, 578 U.S. 330, 345 (2016) (Thomas, J., concurring) (quoting 4 Blackstone, Commentaries *5); *see also Huntington*, 146 U.S. at 668 (citation omitted); *de Fonthrune v. Wofsy*, 838 F.3d 992, 1001 (9th Cir. 2016) (citation omitted). Public rights "include interests generally shared, such as . . . general

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[4] Because *Seila Law* already settled this issue, based on this precedent alone, this Court can hold that Plaintiffs' pursuit of civil penalties is an exercise of the executive power. Besides the argument from precedent, this Court can conduct an originalist analysis. *See United States v. Rahimi*, 602 U.S. 680, 708–10 (2024) (Gorsuch, J., concurring); *id.* at 715, 722 n.3, 723 (Kavanaugh, J., concurring); *id.* at 737–39 (Barrett, J., concurring). Such an analysis of "the executive power" would point to the same conclusion. *Sierra v. City of Hallandale Beach*, 996 F.3d 1110, 1134 (11th Cir. 2021) (Newsom, J., concurring).

constitutionally limited to seeking private remedies for alleged private wrongs. But Congress did not structure the CWA that way. Instead, Plaintiffs' citizen suit is an exercise of Article II's executive power, which Plaintiffs have no right to wield. If Congress believes under-enforcement of the CWA to be a problem, "other forums remain open for examining the Executive Branch's" purported lack of diligence. *Texas*, 599 U.S. at 685. "For example, Congress possesses an array of tools to analyze and influence those policies—oversight, appropriations, the legislative process, and Senate confirmations, to name a few. And through elections, American voters can both influence Executive Branch policies and hold elected officials to account for enforcement decisions." *Id.* (citation omitted); *cf. Nat'l Rep. Sen. Comm. v. FEC*, 146 S. Ct. 2404, 2422 (2026) ("But a purported lack of Government (Executive) enforcement of campaign finance restrictions is not an excuse for the Government (Congress and the Executive) to turn around and enact legislation that would broadly suppress speech and sweep aside the First Amendment."). Because CWA citizen suits violate the Constitution's Executive Vesting, Take Care, and Appointments Clauses, as well as the private nondelegation doctrine, the Court should grant the motion to dismiss.

DATED: August 5, 2026.

Respectfully submitted,

/s/ Peter Raupp
Peter Raupp, Esq. (WVSB #10546)
David M. Flannery (WVSB #1216)
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governmental entities to govern." *FCC v. Consumers' Rsch.*, 606 U.S. 656, 697 (2025). In contrast, laws are permissible under which "private actors" provide only "advice and assistance" to "[g]overnment agencies" and "give [them] recommendations." *Id.* at 692.

[The remainder of Argument II, Argument III through Argument V, pages 8 to 22 of the filing, is not transcribed.]

CONCLUSION

Although the Constitution envisions checks against the excessive application of executive power, CWA citizen suits distort these checks by violating numerous constitutional provisions. Any role private plaintiffs may have in the enforcement of federal environmental law is constitutionally limited to seeking private remedies for alleged private wrongs. But Congress did not structure the CWA that way. Instead, Plaintiffs' citizen suit is an exercise of Article II's executive power, which Plaintiffs have no right to wield. If Congress believes under-enforcement of the CWA to be a problem, "other forums remain open for examining the Executive Branch's" purported lack of diligence. *Texas*, 599 U.S. at 685. "For example, Congress possesses an array of tools to analyze and influence those policies—oversight, appropriations, the legislative process, and Senate confirmations, to name a few. And through elections, American voters can both influence Executive Branch policies and hold elected officials to account for enforcement decisions." *Id.* (citation omitted); *cf. Nat'l Rep. Sen. Comm. v. FEC*, 146 S. Ct. 2404, 2422 (2026) ("But a purported lack of Government (Executive) enforcement of campaign finance restrictions is not an excuse for the Government (Congress and the Executive) to turn around and enact legislation that would broadly suppress speech and sweep aside the First Amendment."). Because CWA citizen suits violate the Constitution's Executive Vesting, Take Care, and Appointments Clauses, as well as the private nondelegation doctrine, the Court should grant the motion to dismiss.

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WEST VIRGINIA RIVERS COALITION and WEST VIRGINIA HIGHLANDS CONSERVANCY, Plaintiffs, v. AMSTED GRAPHITE MATERIALS LLC, Defendant.	)	No. 1:26-cv-00046

CERTIFICATE OF SERVICE

I hereby certify that on August 5, 2026, I electronically filed the foregoing with the Clerk of the District Court using the CM/ECF system, which is understood to have sent notification of such filing electronically to all counsel of record.

/s/ Peter Raupp
Attorney for Defendant

UNITED STATES DISTRICT COURT
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CERTIFICATE OF SERVICE

I hereby certify that on August 5, 2026, I electronically filed the foregoing with the Clerk of the District Court using the CM/ECF system, which will send notification of such filing electronically to the following counsel of record, who are served by that means:

Counsel of record for Plaintiffs West Virginia Rivers Coalition and West Virginia Highlands Conservancy

s/ Peter Raupp

Attorney for Defendant